

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lee S. Allistair Pearson	Team: Team # 2	CCRB Case #: 200500942	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 01/24/2005 8:00 PM	Location of Incident: c/o Glenwood Rd / Rockaway Pkwy, Brooklyn	18 Mo. SOL 7/24/2006	Precinct: 69
Date/Time CV Reported Thu, 01/27/2005 11:01 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/27/2005 11:01 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Anand Bhoj	00144	915053	069 PCT
2. POM Patrick Smith	29672	931998	069 PCT
3. POM John Rivera	12957	932207	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Mary Arleth	00655	896961	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Patrick Smith	Force: PO Patrick Smith used physical force against § 87(2)(b)	A . Alleged Victim Unavailable
B . POM John Rivera	Force: PO John Rivera threw § 87(2)(b) against the hood of his vehicle.	B . Unsubstantiated
C . POM John Rivera	Force: PO John Rivera used physical force against § 87(2)(b)	C . Unsubstantiated
D . SGT Anand Bhoj	Force: Sgt. Anand Bhoj used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM John Rivera	Force: PO John Rivera used physical force against § 87(2)(b)	E . Unsubstantiated

Synopsis

This complaint was filed over the telephone with the CCRB on January 27, 2005. § 87(2)(b) stated that on January 24, 2005 he observed officers arresting an individual known to him as § 87(2)(b) (later identified by the CCRB as § 87(2)(b)). § 87(2)(b) felt that the officers were using excessive force to arrest § 87(2)(b) when they kicked him as he lay on the ground (allegation A) and he stated that if they continued to do so he would take pictures with his camera phone. § 87(2)(b) alleged that he was approached by an officer who knocked the telephone out of his hand and proceeded to throw him against a vehicle (allegation B). At this time several officers held him down and handcuffed him. While his hands were cuffed behind his back § 87(2)(b) alleged that an officer wrenched his fingers and caused him pain (allegation C). § 87(2)(b) stated that he was then thrown to the ground and kicked several times about the body (allegation D). He was transported to the 69th Precinct in a patrol vehicle and, upon reaching the precinct, he was dragged out of the back seat and dropped onto the sidewalk, thereby causing injury to his back (allegation E).

Efforts were made to locate and interview § 87(2)(b) however, the letter forwarded to his home was returned with a notice indicating that the address is nonexistent. § 87(2)(b) did not actually see the officers kick § 87(2)(b) due to the fact that a parked car obstructed his view. § 87(2)(g)

§ 87(2)(b) it is therefore recommended that allegation A be closed as Victim Unavailable. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that allegations B-E be closed as Unsubstantiated.

Summary of Complaint

§ 87(2)(b) was interviewed at the CCRB on February 11, 2005. He phoned his complaint in to the CCRB on January 27, 2005. § 87(2)(b) stated that on January 24, 2005 he was working as a § 87(2)(b) near Glenwood Road and Rockaway Parkway in Brooklyn. § 87(2)(b) was standing in front of his vehicle near the curb when he observed a man, known to him as § 87(2)(b) (later identified by the CCRB as § 87(2)(b)) being arrested. § 87(2)(b) was handcuffed and placed inside of a marked police vehicle. While in the vehicle, § 87(2)(b) kicked the window of the patrol car. Two officers (described by § 87(2)(b) as white males) took § 87(2)(b) out of the RMP and threw § 87(2)(b) down near the vehicle (on the side farthest away from § 87(2)(b)). § 87(2)(b) observed one officer who threw § 87(2)(b) to the ground and this officer appeared to kick him. § 87(2)(b) asked, "What are you doing? You can't do that. I have a camera phone right here. If I see you kick him one more time I'm going to start taking pictures." The officers paused for minute and within that time about four to five additional police vehicles arrived at the scene. About four to five officers exited from various vehicles and approached § 87(2)(b). § 87(2)(b) described all of the responding officers as white males). § 87(2)(b) stated that one of the officers walked ahead of the rest; it seemed as though he was in command. The officer (PO1) stated "Get back" several times. § 87(2)(b) was standing in front of his car, which was legally parked in the middle of the block and, due to the recent snowstorm, there were large piles of snow on the sidewalk near the curb. As a result, it was not possible for § 87(2)(b) to back up without walking to the corner. § 87(2)(b) stated, "I'm already back." PO1 told him, "Mind your business, don't interfere." § 87(2)(b) replied, "I'm not trying to interfere with your arrest but if I see those officers kick that man one more time I'm going to start taking pictures with my phone." PO1 then slapped the phone out of § 87(2)(b)'s hand, grabbed him by his neck and threw him against the hood of his own vehicle. At this point § 87(2)(b) heard a crowd of people protesting to the actions of the officers. He stated that the area is generally busy due to the fact that the L train makes its final stop near this location.

§ 87(2)(b) was held by several officers who proceeded to place handcuffs on him. He stated that he felt several hands on him although he could not see who was touching him. § 87(2)(b) maintained that he did not resist in any way. While he was rear cuffed, one of the officers grabbed § 87(2)(b)'s fingers and began to wrench them as though he was attempting to break them. This caused § 87(2)(b) to scream in pain. He was then lifted off of his car and thrown to the ground, causing injury to his chest. As he lay face down,

the officers kicked § 87(2)(b) in the back while another officer raised his foot and attempted to stomp § 87(2)(b) who was able to move just in time to avoid this blow. § 87(2)(b) was dragged across the street by the handcuffs while he shouted, "My chest is hurting." He stated that the officers continued to strike him in the back and side when he was lifted in a hog tie position and thrown inside of an RMP. He added that his handcuffs were so tight that he began to cry out in pain. § 87(2)(b) began to pray, at which point he closed his eyes and blacked out for several minutes. § 87(2)(b) became aware again when an officer touched his leg and chest telling him, "Get up, we're here."

§ 87(2)(b) was dragged out of the car by an officer and dropped on the concrete resulting in an injury to his back. He was then pulled to his feet and he walked into the precinct. While in the 69th Precinct, he was made to lay on the ground, approximately ten feet from the door, while one officer placed a foot on his leg and another stood on his back § 87(2)(b) could not describe these two officers). § 87(2)(b) asked the officers "Why do you still have your foot on me? I'm already in the precinct with handcuffs on." One of the officers told him to "Shut up and calm down." § 87(2)(b) stated that he would like to go to the hospital because his chest was hurting. An officer in a white shirt § 87(2)(b) believes he was a Lieutenant) told § 87(2)(b) that "Going to the hospital might make things a whole lot worse for you." The officer then pointed to § 87(2)(b) and stated "See that guy over there? We're gonna strap him up in one of those body bags over there (indicating toward a restraint bag). We're going to strap you up in one of those bags and believe me, you'll be in a lot more pain before you reach the hospital." § 87(2)(b) was shocked by this comment and began to pray once again.

§ 87(2)(b) was turned onto his back while still handcuffed (causing further injury to his hands). He was searched more than once yet the officers did not find any contraband on § 87(2)(b). An officer who identified himself to § 87(2)(b) as PO Rivera stated that § 87(2)(b) would be charged with § 87(2)(b). § 87(2)(b) asked, "How could you charge me with resisting arrest when I don't even know what I'm being arrested for?" PO Rivera did not answer § 87(2)(b) and proceeded to walk away. § 87(2)(b) stated that when he arrived at Central Booking in downtown Brooklyn he found that he was charged with § 87(2)(b). He remained in the precinct for approximately three hours after which he was taken to Central Booking in downtown Brooklyn. § 87(2)(b) was then taken to § 87(2)(b). § 87(2)(b) The doctor recommended that § 87(2)(b) have x-rays done on his back, however, he declined due to the fact that he wanted to expedite the process and go home. He was then taken back to the 69th Precinct and then transferred to Central Booking once again in the early morning hours. § 87(2)(b) was released 24 hours after he was initially arrested.

Civilians not Interviewed

Attempts were made to contact and interview § 87(2)(b). The address that was initially provided for him (§ 87(2)(b)) was found to be nonexistent subsequent to a Metrosearch query. A broader search was conducted and Metrosearch did not list § 87(2)(b) as a resident of § 87(2)(b) in Brooklyn. As a result, DMV records were referenced and they indicated that § 87(2)(b) address was, in fact, § 87(2)(b). A Please Call letter was forwarded to this address. The please call letter was later returned to the CCRB with a notice indicating that the address was nonexistent.

Results of Investigation

PO John Rivera

PO John Rivera was interviewed at the CCRB on October 24, 2005. He stated that on January 24, 2005 he worked from 1500x2335 as Sgt. Anand Bhoj's operator in RMP # 2118. Both officers were dressed in uniform on the date of occurrence. PO Rivera made entries in his memobook pertaining to the incident as follows: "1945 10-85 at Rockaway Parkway and Glenwood Road. 1952, 10-92C; § 87(2)(b) § 87(2)(b)." PO Rivera stated that he responded to a call for assistance that was put out over the radio by a SNEU team that was having difficulties with an individual (identified by PO Rivera as § 87(2)(b)). Upon responding to the scene with Sgt. Bhoj, PO Rivera observed several people, including § 87(2)(b) forming a crowd and attempting to approach members of the SNEU team that were dealing with § 87(2)(b) (PO Bryan Soll, PO Patrick Smith). § 87(2)(b) was handcuffed and placed in a patrol vehicle,

however, the crowd of individuals continued to advance. PO Rivera and Sgt. Bhoj told the crowd to step back, however, § 87(2)(b) refused. PO Rivera described § 87(2)(b) as being highly agitated and asserted that § 87(2)(b) screamed “Fuck the police.” Sgt. Bhoj approached § 87(2)(b) in order to tell him to step back across the street and § 87(2)(b) took a swing at Sgt. Bhoj. At this time PO Rivera grabbed § 87(2)(b) and pushed him onto the hood of a nearby patrol car. PO Rivera then walked over to § 87(2)(b) and placed handcuffs on him. § 87(2)(b) offered a little resistance by moving from side to side and kicking his feet slightly, however, with the assistance of Sgt. Bhoj, PO Rivera was able to handcuff § 87(2)(b). Individuals in the crowd, which had grown to about 25 people, gathered approximately fifteen feet from the officers and began to shout that the officers had the wrong person. § 87(2)(b) then threw himself to the ground and fell on his knees about six feet away from the patrol vehicle. Therefore, Sgt. Bhoj picked him up and walked him over to their patrol car and placed him inside. § 87(2)(b) was no longer resisting at this point. By this time the crowd was under control and was no longer threatening to the officers on the scene. § 87(2)(b) was brought to the stationhouse and processed as a normal arrest. PO Rivera denied that the officers had to pull § 87(2)(b) out of the patrol vehicle at any time, thereby causing injuries to his back. PO Rivera was not sure what happened to § 87(2)(b) nor was he certain if ESU was called to the stationhouse. PO Rivera stated that he did observe § 87(2)(b) holding something in his hand upon arriving at the location of occurrence, however, he was not positive if this item was a camera phone or if § 87(2)(b) was taking pictures. PO Rivera did not see the SNEU officers use any physical force against § 87(2)(b) he was fairly certain that § 87(2)(b) was already handcuffed and under control by the time he and Sgt. Bhoj arrived on the scene. PO Rivera stated that he did not attempt to injure § 87(2)(b)'s fingers as handcuffs were being applied and he did not observe any other officers attempt to do so. No officer on the scene attempted to stomp on § 87(2)(b) as he lay on the ground. PO Rivera stated that, aside from holding § 87(2)(b) steady, no other physical force was used to effect his arrest. PO Rivera stated that § 87(2)(b) was not dragged out of the car upon arrival at the precinct since he was calm by this time. PO Rivera stated the § 87(2)(b) was searched in the 69th Precinct but he did not recall an officer standing on § 87(2)(b)'s leg. PO Rivera did not believe that § 87(2)(b) asked to be taken to a hospital. His property, consisting of a mobile phone, a key chain and a set of keys were given to his mother at the stationhouse.

Sgt. Anand Bhoj

Sgt. Anand Bhoj was interviewed at the CCRB on November 28, 2005. He stated that on January 24, 2005 he worked from 1450x2347 with PO John Rivera as the patrol supervisor. The officers were operating a marked RMP and were dressed in uniform. Sgt. Bhoj recorded the incident in his memobook as follows: 1945 10-2 Rockaway and Glenwood regarding a 10-85 by SNEU. 1952 arrest § 87(2)(b) by PO Rivera. Male, black, 300lbs, took a swing at me.” Sgt. Bhoj stated that he received a 10-85 from the 69th Precinct SNEU team who were having problems with an arrest. Upon responding to the scene Sgt. Bhoj observed the SNEU team members wrestling with a black male (not § 87(2)(b)) near the corner of Rockaway Parkway and Glenwood Road. There were approximately two SNEU team members wrestling with this individual but he could not be sure of the identity of the SNEU officers. Other units responded to the scene but Sgt. Bhoj did not recognize any of the additional officers. Sgt. Bhoj stated that as the officers were arresting § 87(2)(b) § 87(2)(b) came charging across the street toward the officers. Sgt. Bhoj stepped in front of him and asked § 87(2)(b) to move to the other side of the street. He told § 87(2)(b) that if he wanted to watch he could do so, but only from a safe distance. § 87(2)(b) responded by stating “Fuck you pig.” Sgt. Bhoj stated that when § 87(2)(b) made the comment “Fuck you pig” a small crowd gathered and began to make similar comments § 87(2)(b) was combative and pushed Sgt. Bhoj slightly. Sgt. Bhoj saw PO Rivera approach out of the corner of his eye (he was not certain what PO Rivera was doing prior to this). Almost immediately after pushing Sgt. Bhoj, § 87(2)(b) attempted to punch him in the face, however, PO Rivera was able to get between them and blocked the punch with his arm. PO Rivera and Sgt. Bhoj then grabbed § 87(2)(b) by the shoulders and turned him around and placed handcuffs on him while he was standing. § 87(2)(b) was resisting but the officers were able to pull his hands behind his back through the use of minimal force and handcuff him. § 87(2)(b) then threw himself to the ground and landed on his knees. PO Rivera and Sgt. Bhoj were able to stand him up by grasping his body beneath the shoulders and walked him over to a nearby patrol car. § 87(2)(b) continued to yell obscenities at this time, although Sgt. Bhoj could not recall what he said to any significant degree of detail. Sgt. Bhoj only spoke to § 87(2)(b) at the stationhouse when he told § 87(2)(b) to calm down. Sgt. Bhoj received another call for assistance upon

reaching the stationhouse, therefore, he had to leave and was not aware of anything that happened to § 87(2)(b) thereafter. Sgt. Bhoj did not see § 87(2)(b) attempting to take pictures upon arriving at the scene. He denied that an officer threw § 87(2)(b) against the hood of his vehicle. Sgt. Bhoj did not see anyone attempt to wrench § 87(2)(b)'s fingers while he was handcuffed. Sgt. Bhoj did not see any officer strike § 87(2)(b) at any time nor was he dragged out of the patrol vehicle upon arrival at the 69th Precinct Stationhouse.

PO Patrick Smith

PO Patrick Smith was interviewed at the CCRB on January 23, 2006. He stated that on January 24, 2005, he worked from 1400x2235 on a SNEU assignment with PO Bryan Soll. The officers were operating RMP #§ 87(2)(b). PO Smith stated that he did make entries in his memobook pertaining to the incident, however, he lost that particular memobook prior to appearing at the CCRB. PO Smith stated that he and his partner were conducting a routine patrol when they observed § 87(2)(b) purchasing drugs from an unknown individual. When the officers approached § 87(2)(b) they told him to stay where he was and explained why he was being stopped. § 87(2)(b) became loud and aggressive and began to flail his arms and PO Smith described his overall demeanor as combative. PO Smith and PO Soll approached § 87(2)(b) held him by the wrist and elbow of both arms and placed him against a nearby wall (with his face toward the wall). § 87(2)(b) was still resistant and continued to struggle by keeping his arms rigid and not allowing the officers to place handcuffs on him. Consequently, some minor physical force was used to hold § 87(2)(b)'s arms behind his back while handcuffs were placed on his wrists. § 87(2)(b) was frisked, however, PO Smith did not believe that contraband was found on his person. During this time § 87(2)(b) remained combative and when he was placed in a nearby patrol car (which did not have a cage) he began to kick at the rear driver side window of the vehicle. Despite having kicked the window several times, § 87(2)(b) was unable to break it. PO Smith realized that, given his behavior, it would be safer to remove § 87(2)(b) from this patrol vehicle and place him in a vehicle with a partition between the front and rear. Prior to attempting to remove § 87(2)(b) from the vehicle, PO Smith placed a 10-85 over the radio. PO Smith then opened the rear door of the patrol car and as he and PO Soll were in the process of removing § 87(2)(b) from the car, § 87(2)(b) kicked at them thereby causing them to stumble and fall. PO Soll sustained minor injuries to his back and PO Smith was kicked on his shoulder and knee. The officers were able to rise to their feet quickly and move § 87(2)(b) to a caged car by holding both of his arms, forcefully, near the armpit.

Upon being placed into a caged car, § 87(2)(b) began to kick the rear, passenger side window of the patrol car, however, this time he was successful in shattering the window. Once the rear window of the RMP was broken he was able to escape from the vehicle out of this opening. § 87(2)(b) began to flee down Rockaway Parkway while still handcuffed. PO Smith gave chase and tackled § 87(2)(b) from behind and with further assistance from PO Soll, placed him into a third car (which also had a cage) and transported him to the 69th Precinct. ESU was called to the 69th Precinct Stationhouse due to the fact that § 87(2)(b) continued to behave very aggressively. PO Smith believed that he was restrained and taken to § 87(2)(b). PO Smith stated that at no time did any officer punch, kick, or stomp on § 87(2)(b). He explained that at some point an individual § 87(2)(b) attempted to intervene on behalf of § 87(2)(b) in the vicinity of Rockaway Parkway and Glenwood Road. However, PO Smith did not observe when this occurred; he learned about it later at the stationhouse. He was informed that a male attempted to approach him as he was in the process of taking § 87(2)(b) into custody. PO Smith was not certain about when (during the arrest of § 87(2)(b)) § 87(2)(b) attempted to intervene. PO Smith could not recall who told him about § 87(2)(b). PO Smith did not see anything that happened to § 87(2)(b) on the scene or anytime thereafter.

Sgt. Mary Arleth

Sgt. Mary Arleth was interviewed on July 25, 2005 at the CCRB. She stated that on January 24, 2005 she worked from 1800x0235 in the 69th Precinct stationhouse processing arrest reports. She stated that she does not keep a memobook and she had no independent recollection of the incident. The circumstances surrounding § 87(2)(b)'s arrest, including his charges, were explained to Sgt. Arleth. She stated that she did not respond to the location of occurrence at any time due to the fact that she only works within the 69th Precinct stationhouse as the LAPS (local area processing site) officer. As a result, her name appears on § 87(2)(b)

§ 87(2) s OLBS report as the supervisor approving the arrest. Sgt. Arleth had no knowledge of the allegations at hand nor was she aware of what happened to § 87(2)(b) or § 87(2)(b) at the stationhouse.

Medical Records

§ 87(2)(a) PHL § 18(6)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

NYPD Documents

The command log for the 69th Precinct (*enclosure 16*) was ordered and received at the CCRB. There are separate entries for § 87(2)(b) and § 87(2)(b) § 87(2)(b) was charged with § 87(2)(b) [REDACTED]. His condition was listed as intoxicated/EDP. § 87(2)(b) was charged with § 87(2)(b) [REDACTED]. His condition was listed as apparently normal.

§ 87(2)(a) 160.50
[REDACTED]
[REDACTED]
[REDACTED] § 87(2)(b) arrest report indicates that he was observed associating with known drug dealers at the time of the incident. He was asked to leave the corner where he was observed, however, he refused. § 87(2)(b) was arrested and he was found to be in possession of a ziplock bag filled with marijuana as well as seven bent or defaced Metrocards. While he was being placed under arrest, § 87(2)(b) became extremely violent and spit at PO Smith and kicked out the rear passenger window of RMP 4446.

The ESU report (*enclosures 13A-13C*) was also ordered and received at the CCRB. Lt. Renna of ESU squad 7 prepared the report which reads that the ESU crew arrived at the 69th Precinct stationhouse and placed § 87(2)(b) into an EDP blanket. § 87(2)(b) was removed from the stationhouse and taken to § 87(2)(b) [REDACTED]. The sprint printout reflects that a call for assistance was put out over the radio by SNEU officers and multiple units responded including PO Rivera and Sgt. Bhoj.

The 911 CD and sprint printout (*enclosures 11A-11E*) received from the communications division was received. A 10-85 was called in for the location of Rockaway Parkway and Glenwood Road. A second request was made by an unidentified officer for Emergency Services Unit truck #7 to appear at the 69th precinct due to a male "perp" that was "EDP" at the location of Rockaway Park and Glenwood Road. In the background, a garbled voice can be heard exclaiming something to the effect of "What the fuck are you doing?" It is difficult to determine if this was a civilian or police officer. The dispatcher asked if any MOS were injured on the scene and an officer at the scene replied that no MOS were injured. ESU was requested at the 69th precinct as well.

Results of Canvass

A canvass of the intersection of Rockaway Parkway and Glenwood Road was conducted. A Greenpoint bank is located at this intersection. The investigator was able to speak with the assistant manager, § 87(2)(b) [REDACTED], who stated that the bank is normally closed during the time when the incident took place (at approximately 8:00PM). There are several cameras located above the ATMs outside of the bank, however, they do not point in the direction of the intersection. The undersigned was also able to speak to the owner of a fish market located on the corner. § 87(2)(b) [REDACTED] stated that he works at the market everyday until approximately 9:00PM. He explained the heavy police presence is not uncommon in the area due to the fact that there is a school nearby, as a result, he could not specifically recall this incident. Several street vendors, who did not wish to provide their names, stated that they could not recall the incident either.

Complainant Criminal History

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant CCRB History

This is the first complaint that [§ 87(2)(b)] has filed with the CCRB.

Subject Officer Histories

Neither Sgt. Bhoj nor PO Smith have had substantiated CCRB allegations in their respective 10 and 2 year tenures. PO Smith has had two CCRB allegations (200512541) substantiated in his three-year tenure.

Conclusions and Recommendations

Credibility Analysis

[§ 87(2)(b)]

[§ 87(2)(g)]

PO John Rivera and Sgt. Anand Bhoj

[§ 87(2)(g)]

PO Patrick Smith

[§ 87(2)(g)]

§ 87(2)(g)

Sgt. Mary Arleth

§ 87(2)(g)

Recommendations

Allegation A: PO Patrick Smith used physical force against § 87(2)(b)

Attempts were made to locate § 87(2)(b) and letters were forwarded to his address (as listed in the UF 245 and the DMV database). However, these letters were returned to the CCRB with a notice indicating that the address was nonexistent. § 87(2)(b) did not actually observe when officers allegedly kicked § 87(2)(b) although he did see them throw § 87(2)(b) to the ground. PO Patrick Smith explained that such force was necessary due to the fact that § 87(2)(b) was attempting to escape after kicking out the window of the patrol car in which he was being held. § 87(2)(g) it is therefore recommended that allegation A be closed as **Victim Unavailable**.

Allegation B: PO John Rivera threw § 87(2)(b) against the hood of his vehicle.

Allegation C: PO John Rivera used physical force against § 87(2)(b)

Allegation D: Sgt. Anand Bhoj used physical force against § 87(2)(b)

Allegation E: PO John Rivera used physical force against § 87(2)(b)

§ 87(2)(g)

PO Rivera stated that § 87(2)(b) was handcuffed where he stood, therefore, there was no need to throw against his vehicle. He also stated that he and Sgt. Bhoj were able to place § 87(2)(b) under arrest by themselves, and at no time did any officer kick § 87(2)(b) or wrench his fingers thereby causing him pain. § 87(2)(g)

it is therefore, recommended that allegations B-E be closed as **Unsubstantiated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: